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Case Number: 25STCV08680 Hearing Date: July 16, 2026 Dept: 506

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - CENTRAL DISTRICT

CITIZENS OF HUMANITY, LLC,

Plaintiff,

vs.

ROY HIRSCH, et al.,

Defendants.

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CASE NO.: 25STCV08680

[TENTATIVE] ORDER GRANTING MOTIONS TO COMPEL INSPECTION IN ACCORDANCE WITH DEFENDANT ROY HIRSCH'S STATEMENTS OF COMPLIANCE RE REQUESTS FOR PRODUCTION, SETS ONE AND TWO

Dept. 506

8:30 a.m.

July 16, 2026

On March 25, 2025, Plaintiff Citizens of Humanity LLC filed this action against Defendants Roy Hirsch and Aaron Garzon. The Complaint alleges (1) breach of contract, (2) declaratory relief, (3) fraud, and (4) negligent misrepresentation.

On June 23, 2026, Plaintiff filed motions to compel Roy Hirsch to comply with his statement that he will produce documents in response to Plaintiff's first and second sets of requests for production of documents.

LEGAL STANDARD

"The party to whom a demand for inspection, copying, testing, or sampling has been directed shall respond separately to each item or category of item by any of the following: [¶]

(1) A statement that the party will comply with the particular demand for inspection, copying, testing, or sampling by the date set for the inspection, copying, testing, or sampling pursuant to paragraph (2) of subdivision (c) of Section 2031.030 and any related activities. [¶] (2) A representation that the party lacks the ability to comply with the demand for inspection, copying, testing, or sampling of a particular item or category of item. [¶] (3) An objection to the particular demand for inspection, copying, testing, or sampling." (Code Civ. Proc., § 2031.210, subd. (a).)

"A statement that the party to whom a demand ... has been directed will comply with the particular demand shall state that the production ... demanded, will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production." (Code Civ. Proc., § 2031.220, subd. (a).)

"On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: [¶] (1) A statement of compliance with the demand is incomplete." (Code Civ. Proc., § 2031.310, subd. (a).)

"Except as provided in subdivision (j) [concerning electronically stored information], the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2031.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.310, subd. (h).)

DISCUSSION

Plaintiff moves to compel Defendant to comply with his statement that he will produce documents responsive to Plaintiff's Requests for Production of Documents (Set One) ("RFP One"), Nos. 1 to 47, and Requests for Production of Documents (Set Two) ("RFP Two"), Nos. 32 to 38.

In response to RFP Set One, Nos. 1-30, 41-44, 46-47, and RFP Set Two, Nos. 32 to 38, Defendant stated that, without waiving his objections, he will produce "responsive, non-privileged documents" either at some point, at a "reasonable time and place to be agreed upon between counsel," and/or after entry of a protective order. In the Joint Discovery Dispute Statements, Defendant again claims that he will produce responsive, non-privileged documents to these RFPs that are within his possession, custody, and control.

Defendant's responses to the above RFPs were not code compliant. Under Code of Civil Procedure, if a "responding party objects to the demand for inspection, copying, testing, or sampling of an item or category of item, [his] response shall do both of the following: [¶] (1) Identify with particularity any document, tangible thing, land, or electronically stored information falling within any category of item in the demand to which an objection is being made." (Code Civ. Proc., § 2031.220, subd. (a).) Here, Defendant failed to identify with particularity the documents he is withholding in response to the requests for production because of privilege or another objection. Code of Civil Procedure also places the burden of moving for a protective order on Defendant. It states: "When an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order." (Code Civ. Proc., § 2031.060, subd. (a).) It is improper for Defendant to withhold documents if he has not yet filed a motion for a protective order.

Therefore, Plaintiff's request to compel further responses to RFP Set One, Nos. 1-30, 41-44, 46-47, and RFP Set Two, Nos. 32 to 38 is GRANTED.

As for the remaining requests, RFP Set One, Nos. 31-40 and 45, Defendant contends in the Joint Discovery Statement that he should not be compelled to serve further responses "because, upon completion of a diligent, reasonable, and thorough search of all available documents and materials, no further responsive, non-privileged items exist." However, that statement is not verified. (See *Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 635-636 ["Unsworn responses are tantamount to no responses at all"].) Even if that statement was verified, a representation of inability to comply with a particular demand must "also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement [must also] set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item." (Code Civ. Proc., § 2031.230.) Defendant has not complied with those requirements.

Therefore, the request to compel further responses to RFP Set One, Nos. 31-40 and 45 is also GRANTED.

The Court shall require Defendant to a privilege log for any document withheld on the ground of privilege or other protection. (*Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116, 1130 ["A privilege log must identify with

particularity each document the responding party claims is protected from disclosure by a privilege and provide sufficient factual information for the propounding party and court to evaluate whether the claim has merit. [Citations.] The precise information required for an adequate privilege log will vary from case to case based on the privileges asserted and the underlying circumstances. In general, however, a privilege log typically should provide the identity and capacity of all individuals who authored, sent, or received each allegedly privileged document, the document's date, a brief description of the document and its contents or subject matter sufficient to determine whether the privilege applies, and the precise privilege or protection asserted"].)

Plaintiff seeks total sanctions of \$6,000 (i.e., \$3,000 per motion) against Defendant. Plaintiff's counsel testifies that his firm, Ross LLP, would have charged Plaintiff an amount exceeding those sanctions. (Stiglitz Decl., ¶ 5.) Associate Charles Moore spent 8.0 hours on the motion at \$400 per hour (equals \$3,200), and Partner Peter Ross expects to spend 3.5 hours preparing for and attending the hearing at \$975 per hour (equals \$3,412.50). (Ibid.)

The Court has not found circumstances that would make the imposition of sanctions against Defendant unjust. In the Joint Discovery Statements, defense counsel testifies that the motions came as a surprise to him because, at the time they were served, the parties were meeting and conferring regarding supplemental document production. (Bjorgum Decl., ¶ 2.) However, the documents Defendant stated they would produce were not produced, and Defendant's initial responses were not code compliant. Therefore, the Court finds it proper to impose sanctions against Defendant.

The Court finds the requested sanctions excessive for these motions. The Court shall only impose total sanctions of \$4,600 against Defendant for both motions (i.e., 11.5 hours spent on the motions at the billing rate of \$400 per hour).

CONCLUSION

The motions to compel are GRANTED. Defendant is ordered to provide further, code compliant responses within 30 days. A privilege log must be served for documents Defendant withholds on the ground of privilege or other protection.

The request for sanctions is GRANTED. Defendant is ordered to pay Plaintiff sanctions of \$4,600 within 30 days.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 16th day of July 2026

Hon. Thomas D. Long

Judge of the Superior Court